

25STCV24981 25STCV24981

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Case Number: 25STCV24981 Hearing Date: August 27, 2026 Dept: 516

Judge James I. Montgomery

Department 516

Hearing Date: August 27, 2026

Case Name: Cueva, et al. v. Farmers Insurance

Exchange, a California Corporation, et al.

Case

No.: 25STCV24981

Matter: Demurrer with Motion to Strike

Moving

Party: Defendant Eulalio Diaz

Responding Party: None

Tentative

Ruling: Defendant Eulalio Diaz's demurrer

is sustained in its entirety.

Defendant

Eulalio Diaz's motion to strike is rendered moot.

Plaintiffs

Martha Cueva ("Martha") and Sophia Cueva ("Sophia") (collectively "Plaintiffs")

filed this action against Defendants Farmers Insurance Company, a California Corporation, Farmers General Insurance Agency, Inc., a Rhode Island Corporation, Eulalio Diaz ("Diaz"), an individual, and Does 1 to 100. The FAC alleges two causes of action: (1) breach of oral contract; and (2) fraud.

Diaz demurs

to Plaintiffs' two causes of action and moves to strike Plaintiffs' prayer for punitive and treble damages, attorneys' fees, and statutory damages. Plaintiffs did not file an opposition.

Legal Standard

A demurrer is an objection to a pleading, the grounds for which are apparent from either the face of the complaint or a matter of which the court may take judicial notice. (Code Civ. Proc., § 430.30, subd. (a); see also *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The purpose of a demurrer is to challenge the sufficiency of a pleading by raising questions of law. (Postley v. Harvey (1984) 153 Cal.App.3d 280, 286.) "In the construction of a pleading, for the purpose of determining its effect, its allegations must be liberally construed, with a view to substantial justice between the parties." (Code Civ. Proc., § 452.) The court " 'treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law'" (Berkley v. Dowds (2007) 152 Cal.App.4th 518, 525.) In applying these standards, the court liberally construes the complaint to determine whether a cause of action has been stated. (Picton v. Anderson Union High School Dist. (1996) 50 Cal.App.4th 726, 733.)

"The

court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) "Immaterial" or "irrelevant" matters include allegations not essential to the claim, allegations neither pertinent to nor supported by an otherwise sufficient claim or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subds. (b)(1)-(3).)

Analysis

Meet and
Confer

Pursuant to Code of Civil Procedure

section 430.41, “a demurring party is required to meet and confer in person, by telephone, or video conference with the party that filed the pleading. . . .”

(Code Civ. Proc. § 430.41, subd. (a).) A moving party in a motion to strike must meet and confer before filing the motion. (Code Civ. Proc. §435.5, subd. (a).)

Diaz declares that on June 29, 2026,
the parties met and conferred over video conference. (Lee Decl., ¶ 4.) Thus, the parties fulfilled their meet-and-confer obligations.

Demurrer

Diaz

demurs to Plaintiffs’ two causes of action on the grounds of uncertainty and failure to allege sufficient facts to constitute a cause of action.

Uncertainty

Per Code of Civil Procedure section

430.10, subdivision (f), a demurrer must be sustained if a pleading is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) The term uncertain means “ambiguous and unintelligible.” (Ibid.) However, demurrers for uncertainty will not be sustained unless “the pleading is so incomprehensi[ve] that a defendant could not reasonably respond.” (A.J. Fistes Corp. v. GDL Best Contractors, Inc. (2019) 38 Cal.App.5th 677, 695 , quoting Mahan v. Charles W. Chan Ins. Agency, Inc. (2017) 14 Cal.App.5th 841, 848, fn.3 (A.J. Fistes Corp.).)

In looking

at the FAC as a whole, it is not incomprehensible. The FAC alleges sufficient facts for Diaz to respond.

Failure to Allege Sufficient

Facts

First Cause of Action

“[T]he essential elements to be pleaded in an action for breach of contract are: (1) the contract; (2) plaintiff's performance of the contract or excuse for nonperformance; (3) defendants' breach; and (4) the resulting damage to plaintiff.” (Lortz v. Connell (1969) 273 Cal.App.2d 286, 290.)

Diaz

contends that Plaintiffs' first cause of action is time-barred and the claim fails entirely as to Plaintiff Sophia.

Code of

Civil Procedure section 339 provides that breach-of-contract claims not based on a written instrument have a two-year statute of limitations. (Code Civ. Proc., § 339.)

Plaintiffs

allege that on July 27, 2020, Diaz allegedly contacted Martha by telephone and “represented to Plaintiff Martha Cueva that she would be ‘fully covered’ under the proposed policy and that the UM/UIM bodily injury limits under the policy would be equal to the bodily injury liability limits.” (FAC, ¶ 15.) Plaintiffs allege that prior to May 7, 2021, Diaz stated that “automobile insurance that would provide full liability coverage and would indemnify Plaintiffs from any liability arising from the operation and control of an automobile.” (FAC, ¶ 42.)

Diaz cites

to Lewis v. Security-First Nat. Bank of Los Angeles (1943) 58 Cal.App.2d 827 to support his argument that Plaintiffs' cause of action is time-barred. In Lewis, the plaintiffs alleged that an oral contract was made for a fire insurance policy, but the Court determined that since “defendant did not, at any time, procure a policy of fire insurance in accordance with its alleged agreement, plaintiffs' cause of action accrued, if at all,” when the building was completed as described in the trust deed. (Id. at p. 829.)

Similarly, here, because Plaintiffs did not acquire the policy for UM/UIM coverage beyond the statutory requirements at the time the automobile policy went into effect, Plaintiffs' cause of action accrued on July 27, 2020, at the

latest, May 7, 2021. Plaintiffs did not file their action until August 26, 2025. In the absence of a timely opposition, the Court finds that Plaintiffs' cause of action is time-barred.

Thus, the Court sustains Diaz's demurrer without leave to amend.

Second Cause of Action

"The elements of fraud, which give rise to the tort action for deceit, are (a) misrepresentation (false representation, concealment, or nondisclosure); (b) knowledge of falsity (or 'scienter'); (c) intent to defraud, i.e., to induce reliance; (d) justifiable reliance; and (e) resulting damage." (Lazar v. Superior Court (1996) 12 Cal.4th 631, 637.) "Every element of the cause of action for fraud must be alleged in the proper manner and the facts constituting the fraud must be alleged with sufficient specificity to allow defendant to understand fully the nature of the charge made." (Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73.) "This particularity requirement necessitates pleading facts which "show how, when, where, to whom, and by what means the representations were tendered." (Ibid.)

Diaz argues that Sophia cannot assert a claim because the FAC does not allege that Diaz spoke with her. Moreover, Diaz contends that the FAC does not allege whether Diaz committed fraud in his individual capacity or as an agent of his employer. The Court agrees. In the absence of a timely opposition, the Court finds that Plaintiffs' cause of action fails to allege sufficient facts.

Thus, the Court sustains Defendant's demurrer as to Plaintiffs' second cause of action without leave to amend.

Therefore, the Court sustains Defendant's demurrer in its entirety.

Motion
to Strike

Diaz moves

to strike Plaintiffs' prayer for punitive and treble damages, attorneys' fees, and statutory damages. Because the Court sustained Diaz's demurrer in its entirety, the motion to strike is rendered moot.

Therefore,
the motion to strike is rendered moot.

Conclusion

Defendant

Eulalio Diaz's demurrer is sustained as to Plaintiffs' first and second causes of action without leave to amend.

Defendant's

motion to strike is rendered moot.